

		together to establish a mutually agreeable date to conduct Mr. Lacombe's deposition. <i>Plaintiff to give notice.</i>
103	BKC Entertainment LLC vs. K1 Speed Franchising, Inc., 23-01317103	<i>Off-calendar.</i>
104	Perceptive Tax Advisory Group, LLC vs. Zero Effort Nutrition, L.P., 26-01549057	Defendant Zero Effort Nutrition LP seeks an order sustaining its demurrer to the 7th cause of action of Plaintiff's Complaint and an order changing venue to Los Angeles. (ROA 10) Initially, on 2/18/2026 Plaintiff PERCEPTIVE TAX ADVISORY GROUP, LLC, a California limited liability company filed a Complaint for: 1. Breach of Contract; 2. Open Book Account; 3. Account Stated; 4. Money Had and Received; 5. Fraud – Intentional Misrepresentation – Civil Code §§ 1709, 1710(1); 6. Fraud – False Promise – Civil Code §§ 1709, 1710(4); 7. Intentional Interference with Contract – Inducing Breach of Contract; 8. Violations of Voidable Transfer Act - Civil Code § 3439.04(a)(1); and 9. Violations of Voidable Transfers Act - Civil Code § 3439.04(a)(2) Notably, the 7th cause of action for Intentional Interference with Contract – Inducing Breach of Contract is directed against Defendants ZENINC, Rossano, and Does 1-25. Moving Party here is Defendant Zero Effort Nutrition, L.P. dba ZEN Foods ("ZENLP"). Moving Party fails to explain how it has standing to demurrer to a cause of action not directed to it. As such, the demurrer is overruled. As to Venue, in paragraph 13 of the Complaint, Plaintiff pleads: "13. Venue for this action is proper in Orange County, California, in accordance with Code of Civil Procedure § 395 et seq., for numerous reasons: "a. The contract alleged herein arose in Orange County and specifies Orange County venue for legal proceedings; "b. The defendants waived any objection to venue in Orange County by failing and refusing to participate in the alternative dispute resolution procedures specified in the contract alleged herein;

	"c. Plaintiff resides in Orange County and performed the contract in Orange County; "d. The defendants did business with Plaintiff in Orange County, and recently did and/or currently do business in Orange County in the ordinary course of their business; and "e. The defendants' performance obligations under the contract alleged herein were to be completed in Orange County, and, therefore, the defendants' breaches and violations took place in Orange County." Generally, except as otherwise provided by law and subject to the power of the court to transfer ... the county where the defendants or some of them <i>reside</i> at the commencement of the action is the proper court for the trial of the action." [CCP § 395(a) (emphasis added); see <i>Brown v. Sup.Ct. (C.C. Myers, Inc.)</i> (1984) 37 Cal.3d 477, 483.] The defendant has the right to have a transitory action against the defendant tried in the county where the defendant resides. Defendant's right to have the action tried at defendant's residence is subject to the qualification "Except as otherwise provided by law". The "general rule" of venue has effect only when no other venue provision applies. Wherever there is a more specific venue statute, the "general rule" is subordinated. [<i>Brown v. Sup.Ct. (C.C. Myers, Inc.)</i> (1984) 37 Cal.3d 477.] As to breach of contract actions, such actions are triable in the county where defendant resides OR where the contract was entered into OR where it was to be performed (if specified in writing). [CCP § 395(a).] This means the place where the acceptance occurred (e.g., where it was mailed, or where words of acceptance spoken). [See <i>Wilson v. Scannavino</i> (1958) 159 Cal.App.2d 369, 370-371, 324 P2d 350, 351—contract negotiated by telephone "entered into" where acceptor spoke] The place of making is deemed to be the place of performance unless a different place is specified in a "special contract in writing." [CCP § 395(a)] Here, Cherry Kiely, Managing Member of Plaintiff Perceptive Tax Advisory Group, LLC, declares that she signed the contract at issue from Plaintiff's office in Orange County. (Decl. Kiely ¶4.) She also declares that, "PTAG fully performed its services under the Agreement, and every service was performed by PTAG personnel working from PTAG's Orange County offices." (Id. ¶9.) Finally, she declares, "PTAG issued its invoices for the engagement from its Orange County offices, and the invoices
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		directed that payment be remitted to PTAG by wire or ACH pursuant to the instructions stated on the invoices. Payment was therefore to be made to PTAG in Orange County.” (Id. ¶10.) However, in the reply, Defendant submits evidence Mariana Rossano, (Defendant’s General Partner) that: “4. On or about May 23, 2022, I executed the Agreement on behalf of ZENLP by DocuSign, signing in the capacity of “CEO” of Zero Effort Nutrition. I executed the Agreement from ZENLP’s Sun Valley, Los Angeles County offices. I have never conducted business on behalf of ZENLP from any location in Orange County, and I did not do so in connection with the execution of the Agreement. “5. ZENLP’s operating bank accounts, financial records, and bookkeeping are maintained exclusively in Los Angeles County. All authorizations for ZENLP’s disbursements—including any payment that would have been due under the Agreement—are made from ZENLP’s Sun Valley offices. No ZENLP account, record, or disbursement authority is, or has ever been, located or exercised in Orange County.” Per the prior declaration of Ms. Kiely, Ms. Rossano signed after her. Therefore, it appears Ms. Rossano was the last act. “The last act necessary to the validity of a contract, usually the act constituting acceptance, is the place of its making.” [<i>Jhirmack Enterprises, Inc. v. Superior Court</i> (1979) 96 Cal.App.3d 715, 723.] Also, it would appear that the breach occurred in LA as well because this case is about Defendant’s alleged failure to pay, and Ms. Rossano declares, “All authorizations for ZENLP’s disbursements— including any payment that would have been due under the Agreement—are made from ZENLP’s Sun Valley offices”. As such, venue is proper in LA because Defendant is a resident of LA, the contract was entered into in LA, and breached in LA. Therefore, the Motion for Change of Venue is GRANTED. <i>Defendant to give notice.</i>
105	Am-Kore Fire Protection Co. Inc. vs. Phoebe Investments, LLC, 24-01398810	Plaintiff Am Kor Fire Protection Co., Inc. (“Am-Kor”) moves the Court for an order consolidating the following actions pursuant to Cal. Civ. Proc. Code § 1048(a): - Am-Kor Fire Protection Co., Inc. v. Phoebe Investments, LLC, et al., Orange County Superior Court Case No. 30-2024-01398810-CU-BC-WJC (the